



CHAPTER xiv.

An Act to confirm a Provisional Order of the Minister of Health relating to the borough of Poole.

[6th August 1942.]

WHEREAS under the provisions of the Public Health Act 1875 the Minister of Health has made a provisional order which needs confirmation by Parliament: 38 & 39 Vict. c. 55.

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The order of the Minister of Health which as amended is set out in the schedule to this Act is hereby confirmed and shall have full validity and force. Order in schedule confirmed.

2. Paragraph (d) of subsection (2) and subsection (4) of section one of the Emergency Powers (Defence) Act 1939 as amended by subsection (2) of section one of the Emergency Powers (Defence) Act 1940 shall have effect as if this Act had been passed before the commencement of the last mentioned Act. Saving of Emergency Powers. 2 & 3 Geo. 6. c. 62. 3 & 4 Geo. 6. c. 20.

3. This Act may be cited as the Ministry of Health Provisional Order Confirmation (Poole) Act 1942. Short title.

SCHEDULE.BOROUGH OF POOLE.*Provisional order altering certain local Acts.*

WHEREAS the mayor aldermen and burgesses of the borough of Poole acting by the council (in this order called "the corporation") in pursuance of various local Acts and provisional orders confirmed by Parliament carry on a water undertaking and supply water within certain limits:

And whereas the corporation have applied to the Minister of Health for the issue of a provisional order to amend the local Acts in the manner following:

Now therefore the Minister of Health in pursuance of the powers given to him by sections 297 and 303 of the Public Health Act 1875 and of all other powers enabling him in that behalf hereby orders as follows:—

PART I.

PRELIMINARY.

Short title and commencement.

1.—(1) This order may be cited as the Poole Order 1942.

(2) Save as otherwise expressly provided this order shall come into operation on the first day of April nineteen hundred and forty-three.

Interpretation.

2. In this order unless the context otherwise requires—

"the Minister" means the Minister of Health;

"the borough" means the borough of Poole;

"county district" means a non-county borough an urban district or a rural district;

"the limits of supply" means the limits within which the corporation are for the time being authorised to supply water;

"the water undertaking" means the water undertaking of the corporation as for the time being authorised;

10 & 11 Vict.
c. 17.

"water rate" has the same meaning as in the Waterworks Clauses Act 1847;

"house" means a dwelling-house whether a private dwelling-house or not and includes any part of a building if that part is occupied as a separate dwelling-house;

"the general rate fund" and "the general rate" mean respectively the general rate fund and the general rate of the borough;

6 Edw. 7.
c. clxxix.

"statutory security" has the meaning assigned to it by section 4 of the Poole Corporation Water Act 1906.

PART II.

SUPPLY OF WATER.

Repeal.

3.—(1) Section 52 (Price of supply by measure) of the Poole Corporation Water Act 1906 is hereby repealed with effect from the first day of October nineteen hundred and forty-two.

5 & 6 GEO. 6. *Ministry of Health* Ch. xiv.
Provisional Order Confirmation (Poole) Act, 1942.

(2) The following enactments are hereby repealed with effect from the first day of April nineteen hundred and forty-three :—

PART II.
—cont.

Poole Corporation Water Act 1906—

Section 45 (Rates for supply of water for domestic purposes);

Section 75 (Application of water revenue).

Poole Corporation Act 1928—

18 & 19 Geo. 5.
c. cxiv.

Section 27 (Rates payable by owners of small houses);

Section 28 (Supply of water by hosepipe to stables &c.);

Section 29 (Supply of water to houses partly used for trade &c.);

Section 108 (Water rate &c. may be collected with general rate).

Poole Corporation Act 1937—

1 Edw. 8 &
1 Geo. 6.
c. cxviii.

Section 37 (Charges for supplies of water for refrigerating apparatus &c.).

4.—(1) The corporation shall at the request of the owner or occupier of any house entitled to demand a supply of water for domestic purposes furnish to such owner or occupier a sufficient supply of water for domestic purposes at a rate not exceeding fifteen per cent. per annum of the net annual value of the premises supplied. Provided that the corporation shall not be required to supply any premises with water at a less sum than fifteen shillings per annum.

Rates for supply
of water for
domestic
purposes.

(2) The net annual value of any premises shall be taken to be that value as appearing in the valuation list in force on the first day of the period of twelve months covered by the rate :

Provided that if that value is not therein stated or if the rate is chargeable on a part only of any hereditament entered therein the net annual value of the premises supplied shall be taken to be such sum or as the case may be such fairly apportioned part of the net annual value of the whole hereditament as in default of agreement may be determined by a court of summary jurisdiction.

(3) In addition to the foregoing rate the corporation may charge in respect of every bath having a capacity (measured to the centre line of the overflow pipe or in such other manner as the Minister may by regulations prescribe) in excess of fifty gallons such sum as the corporation may think fit which sum shall be recoverable in all respects with and in the same manner as the rate.

5.—(1) The corporation shall make any rate payable under subsection (1) of the last preceding section of this order by fixing in respect of a period of twelve months commencing on the first day of April the rate-poundage by reference to which amounts due under the rate are to be calculated and subject to the provisions of this section any such rate shall be payable in advance by equal quarterly instalments on the first day of April the first day of July the first day of October and the first day of January or if the corporation so resolve by equal half-yearly instalments on the first day of April and the first day of October.

Making and
dates for
payment of
water rates.

(2) A rate under this section shall unless and until a new rate is made continue to operate in respect of each successive period of twelve months.

PART II.
—cont.

(3) If and so long as the rates under this section are payable in advance by half-yearly instalments—

- (a) no proceedings shall be commenced for the recovery of any such instalment until the expiration of two months from the first day of the half-year in respect of which it has been demanded; and
- (b) if the person who is or who but for the provisions of section 9 (Water rates on certain houses may be demanded from the owners) of this order would be liable to pay the rate payable in respect of any premises is in occupation of those premises during a portion only of a half-year he or as the case may be the owner of the premises shall be liable to pay so much only of the half-yearly instalment as bears to the whole instalment the same proportion as the number of days within the half-year during which the first-mentioned person is in occupation bears to the number of days in the half-year and if any greater proportion of the instalment has been paid the person by whom it was paid shall be entitled to recover the excess from the corporation except in so far as he has previously recovered it from an incoming occupier.

Provided that nothing in this paragraph shall exempt the owner of any premises from liability in respect of any subsequent portion of the half-year during which the premises may again become occupied.

(4) Subject to the provisions of the last preceding subsection—

- (a) where the corporation commence to give a supply of water to any premises either for the first time or after a discontinuance of supply the then current instalment of the rate shall become payable on the day on which notice requiring the supply is given to the corporation or if no such notice is given on the day when they commence to give the supply; and
- (b) the liability of a person to pay an instalment of a rate shall not be affected by the fact that before the end of the period in respect of which the instalment became payable by him he or his tenant as the case may be removes from the premises in question or causes the supply of water thereto to be discontinued.

(5) Nothing in this section affects any right of the corporation to make a minimum charge in respect of water rates.

Effect on water rates of alterations in valuation list.
15 & 16 Geo. 5. c. 90.

6.—(1) Where in consequence of a proposal under section thirty-seven of the Rating and Valuation Act 1925 an amendment is made in the valuation list for the time being in force the amendment shall for the purpose of calculating the amount due in respect of any water rate payable under this order have effect retrospectively as from the date when the proposal became effective for the purposes of the general rate and notwithstanding anything in the last preceding section with respect to the equality of instalments of a rate any necessary adjustments shall be made in the then current instalment of the rate and any subsequent instalments or rates.

(2) If it is found that by reason of the foregoing provisions too much or too little has been paid in respect of any water rate the difference shall be repaid or allowed or as the case may be shall be paid and may be recovered in the manner in which water rates are recoverable.

PART II.
—cont.

7. Where there is communication otherwise than by a highway between buildings or parts of buildings in the occupation of the same person those buildings or parts of buildings shall if the corporation so decide be treated for the purpose of charging water rates as one building having a net annual value equal to the aggregate of their net annual values :

As to net annual value of two or more buildings in one occupation.

Provided that a person aggrieved by a decision of the corporation under this section may appeal to a court of summary jurisdiction.

8.—(1) The corporation may allow discounts or rebates in consideration of prompt payment of water rates :

Discount for prompt payment of water rates.

Provided that such discounts or rebates shall be at the same rate under like circumstances to all persons and shall not in any case exceed five per cent.

(2) If and so long as the undertakers allow such discounts or rebates notice of the effect of this section shall be endorsed on every demand note for water rates.

9.—(1) Where a house supplied with water by the corporation has a net annual value not exceeding thirteen pounds or is let to tenants holding for any period less than a quarter of a year the owner instead of the occupier shall if the corporation so resolve pay the rate for the supply of water :

Water rates on certain houses may be demanded from the owners.

Provided that in any area in which a higher limit of value than thirteen pounds is in force for the purposes of the proviso to subsection (1) of section eleven of the Rating and Valuation Act 1925 the higher limit shall be deemed to be substituted in this section for thirteen pounds.

(2) An owner of premises to which a resolution of the corporation under this section applies shall if he pays the amount due by him in respect of a water rate before the expiration of one-half of the period in respect of which the rate or instalment of the rate is payable or before such later date as may be specified by the corporation be entitled to an allowance calculated at the rate of five per cent.

10.—(1) The price to be charged for a supply of water by meter shall not exceed two shillings and sixpence per thousand gallons. Provided that except as otherwise expressly provided the corporation shall be entitled to make the following minimum charges for water supplied by meter through a pipe :—

Price of supply by meter.

Where the nominal internal diameter of the pipe does not exceed half an inch a charge of five shillings per quarter ;

Where the nominal internal diameter of the pipe exceeds half an inch but does not exceed one inch a charge of fifteen shillings per quarter ;

PART II.
—cont.

Where the nominal internal diameter of the pipe exceeds one inch but does not exceed two inches a charge of fifty shillings per quarter ;

Where the nominal internal diameter of the pipe exceeds two inches a charge of eighty shillings per quarter.

(2) This section shall come into operation on the first day of October nineteen hundred and forty-two.

Register of
meter to be
evidence.

II.—(I) Where the corporation supply water by meter the register of the meter shall be prima facie evidence of the quantity of water consumed.

(2) Any question arising between the corporation and a consumer with respect to the quantity of water consumed may on the application of either party be determined by a court of summary jurisdiction.

(3) If the meter on being tested is proved to register incorrectly to any material degree—

(a) the meter shall be deemed to have registered incorrectly to that degree since the last occasion but one before the date of the test on which a reading of the index of the meter was taken by the corporation unless it is proved to have begun to register incorrectly on some later date ; and

(b) the amount of any refund to be made to or of any extra payment to be made by the consumer shall be paid or allowed by the corporation or paid by the consumer as the case may be and in the case of an extra payment shall be recoverable in the manner in which water rates are recoverable.

(4) This section shall come into operation on the first day of October nineteen hundred and forty-two.

Charges where
a hosepipe or
outside tap
is used for
certain
purposes.

12.—(I) The following provisions shall have effect where water which the corporation supply for domestic purposes and in respect of which they charge a water rate is also used for the purposes specified in this subsection and a hosepipe or similar apparatus is used—

(a) Where water is used for watering a garden the corporation may charge in respect of that use of the water an additional annual sum calculated according to the following scale :—

Where the area of the garden does not exceed twenty perches a charge not exceeding fifteen shillings ;

Where the area of the garden exceeds twenty perches but does not exceed one rood a charge not exceeding twenty-five shillings ;

Where the area of the garden exceeds one rood but does not exceed two roods a charge not exceeding forty shillings ;

Where the area of the garden exceeds two roods but does not exceed three roods a charge not exceeding fifty-five shillings ;

Where the area of the garden exceeds three roods but does not exceed one acre a charge not exceeding seventy shillings ;

Where the area of the garden exceeds one acre an additional charge not exceeding fifteen shillings in respect of each additional rood or part of a rood.

- (b) Where water is used for horses washing vehicles or other purposes in stables garages or other premises where horses or vehicles are kept the corporation may charge in respect of that use of the water an additional annual sum not exceeding twenty shillings and where more vehicles than one are kept a further annual sum not exceeding ten shillings for each vehicle beyond the first.

(2) Where water is used for either of the purposes specified in the preceding subsection and such water is drawn from a tap outside a house but no hosepipe or similar apparatus is used the corporation may charge an additional annual sum not exceeding one-half of the maximum annual sum chargeable in respect of use for that purpose under that subsection.

(3) Sums charged under the provisions of this section shall be paid in advance either quarterly or half-yearly as the corporation may determine and shall be recoverable in the manner in which water rates are recoverable.

(4) Nothing in this section shall be construed as entitling any person to use water supplied for domestic purposes for watering a garden by means of sprinklers or other mechanical apparatus or for any fountain or other ornamental purpose.

13. Where water which the corporation supply for domestic purposes and in respect of which they charge a water rate is used by means of a hosepipe or other similar apparatus for watering a garden or for horses washing vehicles or other purposes in stables garages or other premises where horses or vehicles are kept and the consumer takes also a supply of water by meter for purposes other than domestic the corporation may require that all water used by him by means of the hosepipe or other apparatus shall be taken by meter and paid for at the rate for the time being applicable to his supply by meter for other non-domestic purposes.

Power to
require supply
for hosepipe
to be taken
by meter in
certain cases.

14.—(1) The corporation shall not be bound to supply with water otherwise than by meter—

Power to
require supply
to certain
premises and
for certain
purposes to be
taken by meter.

- (a) any premises used as a house whereof a part is used by the same occupier for any business trade or manufacturing purpose for which water is required;
- (b) any public institution hospital mental institution nursing home sanatorium school club hostel assembly hall place of public entertainment hotel restaurant or licensed premises within the meaning of that expression as used in the Licensing (Consolidation) Act 1910;
- (c) any boarding house capable of accommodating twelve or more persons including the persons usually resident therein; or
- (d) any premises which are used solely for business trade or manufacturing purposes and in which a supply of water for domestic purposes only is required.

10 Edw. 7 &
1 Geo. 5. c. 24.

(2) Where water supplied to a farmhouse is used for farming purposes as well as for domestic purposes the corporation may require that the water used for farming purposes shall be taken by meter.

PART II.
—cont.

(3) In any of the cases mentioned in subsection (1) of this section the water shall be supplied at a charge not exceeding the charge prescribed by section 10 (Price of supply by meter) of this order subject however to a minimum annual charge equal to the annual amount which would be payable by way of water rate for a supply of water for domestic purposes furnished to the premises in question.

Power to
require supplies
for refrigerating
or water
softening
apparatus &c.
to be taken
by meter.

15. Where a person who takes a supply of water for domestic purposes from the corporation otherwise than by meter desires to use any of the water so supplied—

- (a) for operating a water-cooled refrigerating apparatus ; or
- (b) for operating any apparatus depending while in use upon a supply of continuously running water not being an apparatus used solely for heating the water ; or
- (c) for cleaning regenerating or supplying motive power to any apparatus used for softening water ;

the corporation may subject as hereinafter provided require that all water so used shall—

- (i) be taken by meter at a charge not exceeding the charge prescribed by section 10 (Price of supply by meter) of this order ; or
- (ii) be paid for at a reasonable rate to be determined in default of agreement by a court of summary jurisdiction :

Provided that no charge shall be made under this section in respect of a water softening apparatus used within a house for which the supply of water is taken if one such apparatus only is used and if the water softened thereby is used solely for domestic purposes.

Revision of
water rates
and charges.

16.—(1) The Minister on an application made to him by the corporation or by a county council or local authority within whose county or district the corporation supply water or by twenty persons supplied with water by the corporation may by order make such reduction or increase in the rates and charges which the corporation are authorised to levy and make for a supply of water as he considers reasonable.

(2) Applicants for an order under this section shall publish once at least in each of two successive weeks in one or more local newspapers circulating within the limits of supply a notice explaining the effect of their proposals and stating that objections thereto may be made to the Minister within forty-two days (exclusive of any day in the month of August) after the first publication of the notice and shall transmit a copy of the notice to the council of every county and county district within the limits of supply and shall also publish in the London Gazette a notice stating that they are about to apply for an order under this section naming the county and county districts within the limits of supply and giving the name and date of issue of a local newspaper in which the notice explaining the effect of the order applied for will be found.

(3) If before the expiration of the said forty-two days or before the expiration of thirty-nine days from the publication of the notice in the London Gazette an objection is received by the Minister from any person appearing to him to be affected by the application and is not withdrawn the Minister before making any order on the application shall cause a local inquiry to be held.

(4) The Minister may at any time upon the application of the corporation or of any council or body of consumers entitled to make an application under subsection (1) of this section make an order in like manner and subject to the like provisions as the original order amending any order previously made by him under this section :

Provided that unless he considers that exceptional circumstances exist he shall not make an amending order in pursuance of an application under this subsection before the expiration of five years from the date of his decision on the last preceding application.

(5) In relation to any period during which an order made under this section is in operation the enactments relating to the corporation shall have effect as if the rates and charges specified in the order were substituted for the rates and charges specified in this order.

17.—(1) If the corporation are of opinion that by reason of drought or other cause the water supply of the corporation should be conserved the corporation may prohibit as from such date as they may determine the drawing or user through any hose or moveable pipe of water supplied by them so far as such drawing or user is for the purpose of gardens or horses or washing vehicles or any outdoor washing purpose and such prohibition shall continue until withdrawn.

Power to prohibit temporarily use of hosepipes in case of drought.

(2) The corporation shall before the prohibition comes into force give public notice in two or more newspapers circulating within the limits of supply of the prohibition and of the date when it will come into force.

(3) Any person who while the prohibition is in force contravenes its provisions shall be liable to a penalty not exceeding five pounds.

(4) Where a prohibition is imposed under this section charges made by the corporation for the use of a hosepipe or similar apparatus shall be subject to a reasonable reduction to be settled in case of dispute by a court of summary jurisdiction and in the case of a charge paid in advance any necessary repayment or adjustment shall be made by the corporation.

18.—(1) Any water rate payable to the corporation by a consumer within the borough may be collected together with the general rate and the same books may be used for the said rates.

Recovery of and liability for water rates.

(2) Water rates payable to the corporation whether under this order or under any other enactment shall be payable and recoverable in accordance with the following provisions of this section and not otherwise.

(3) Except where an owner of premises who is not himself the occupier thereof is liable by or under section 9 (Water rates on certain houses may be demanded from the owners) of this order or some other express enactment or by agreement with the corporation, to pay the water rates for a supply of water to those premises the water rates shall be payable by the occupier of the premises.

(4) Any water rates recoverable by the corporation shall be recoverable in the same manner and subject to the same provisions in respect of such recovery as the general rate.

(5) Subject as hereinafter provided and to the provisions of the next succeeding subsection where a person fails to pay within seven

PART II.

—cont.

days after a demand therefor any instalment of a water rate payable by him in respect of any premises the corporation may cut off the supply of water to the premises and recover the expenses reasonably incurred by them in so doing in the same manner as the instalment due :

Provided that if before the expiration of the said seven days notice in writing is given to them that there is a dispute as to the amount due in respect of the water rate or as to the liability to pay the rate they shall not cut off the supply of water until the dispute has on the application of either party been settled by a court of summary jurisdiction.

(6) Where at the date when an instalment of a water rate in respect of any premises becomes due the owner of the premises is liable by or under the said section 9 of this order or some other express enactment or by agreement with the corporation to pay the water rates for a supply of water to those premises and is not himself the occupier thereof the corporation shall not cut off the supply of water to the premises for a failure by him to pay that instalment but that instalment without prejudice to the right of the corporation to enforce payment thereof by him may be recovered by them either from the owner for the time being or subject as hereinafter provided from the occupier for the time being of the premises in the manner in which water rates are recoverable :

Provided that where the occupier of the premises is not the owner thereof—

(a) proceedings shall not be commenced under this subsection against the occupier until notice has been given to him requiring him to pay the amount due out of any rent which is then due or which may thereafter become due from him and he has failed to comply with the notice ; and

(b) no greater sum shall be recovered at any one time from the occupier than the amount of rent which is owing by him or which has accrued since such notice as aforesaid was given to him ; and

(c) if the occupier as between himself and the owner of the premises is not liable to pay the water rates he shall be entitled to deduct from the rent payable by him any sum paid by him in compliance with the notice or so recovered from him.

(7) If any water supply is cut off by the corporation in contravention of the provisions of this section they shall be liable on summary conviction to a fine not exceeding five pounds for each day during which the water remains cut off.

(8) Section 74 (Rates how to be recovered) of the Waterworks Clauses Act 1847 and section 21 (Recovery of rates by action) of the Waterworks Clauses Act 1863 shall cease to apply to the corporation or to be incorporated with the Poole Corporation Act 1906 or the Poole Corporation Act 1928.

19. If it is shown to the satisfaction of a justice of the peace on sworn information in writing that a person is quitting or is about to quit premises to which the corporation supply water and has failed to pay on demand an instalment of a water rate payable by and due from him in respect of those premises and intends to evade payment thereof by departing from the premises the justice may in addition to issuing a summons for the non-payment of the sum due issue a warrant under his hand authorising the person named therein forthwith to enter the premises and to seize sufficient goods and chattels of the defaulter to meet the claim of the corporation and to detain them until the complaint is determined upon the return of the summons.

PART II.

—cont.

Recovery of water rates from persons removing.

PART III.

FINANCIAL PROVISIONS.

20. Notwithstanding anything in any enactment all money received by the corporation in respect of the revenue of the water undertaking (including the interest and other annual proceeds of investments forming part of any sinking fund or reserve renewals or other similar fund) shall be carried to and form part of the general rate fund and all liabilities falling to be discharged from the revenue of the water undertaking shall be paid out of the general rate fund:

Receipts and expenses of water undertaking.

Provided that a sum equal to the interest and other annual proceeds as aforesaid shall (subject in the case of any of the said funds to any statutory limit on the amount of the fund) be credited in the accounts to the fund on the investments of which the same is received.

21.—(1) The corporation shall keep the accounts of the water undertaking for the year ending the thirty-first day of March nineteen hundred and forty-four and later years so as to distinguish capital from revenue and as respects revenue so as to show under a separate heading or division on the one side all receipts in respect of the water undertaking and on the other side all payments and expenses in respect of the water undertaking and such payments and expenses shall be divided so as also to show in each case the amounts expended upon each of the following purposes:—

Accounts of water undertaking.

- (a) The working and establishment expenses and cost of maintenance of the water undertaking;
- (b) The interest on moneys borrowed by the corporation for the purposes of or connected with the water undertaking and the interest on such of the debenture stock of the former Poole Waterworks Company as is for the time being outstanding and charged on the water undertaking;
- (c) The requisite appropriations instalments or sinking fund payments in respect of moneys so borrowed;
- (d) All other expenses (if any) of the water undertaking properly chargeable to revenue; and
- (e) Any money expended on any of the purposes mentioned in the next succeeding section of this order.

PART III.

—cont.

(2) The corporation shall show in their accounts relating to the water undertaking all items (including receipts and payments in respect of loans applicable thereto) which ought to be entered therein in order to show the financial position of the water undertaking.

(3) In all cases in which the corporation keep separate accounts for separate purposes of the water undertaking they shall so far as reasonably practicable apportion between those accounts or carry to any of them any receipts credits payments and liabilities which from time to time ought to be so apportioned or carried.

Application of
excess revenue
of water
undertaking
reserve fund.

22.—(1) If in any financial year the moneys received by the corporation on account of the revenue of the water undertaking exceed the moneys expended by the corporation in respect of the expenses of that undertaking upon the purposes mentioned in paragraphs (a) (b) (c) and (d) of subsection (1) of the last preceding section of this order the corporation may in that year apply out of the general rate fund a sum equal to the amount of such excess to any of the following purposes:—

- (a) In reduction of capital moneys borrowed for the purposes of the water undertaking;
- (b) In the construction renewal extension and improvement of the works and apparatus of the water undertaking;
- (c) In providing a reserve fund in respect of the water undertaking by setting aside such an amount as they may from time to time think reasonable and investing the same in statutory securities until the fund so formed amounts to a sum equal to one-tenth of the aggregate capital expenditure of the corporation on the water undertaking (in this section called "the prescribed maximum").

(2) A reserve fund formed under this section shall be applicable to answer any deficiency at any time arising in the income of the corporation from the water undertaking or to meet any extraordinary claim or demand at any time arising against the corporation in respect of the water undertaking or to the payment of the cost of renewing improving or extending any part of the works forming part thereof or otherwise for the benefit of the water undertaking and so that if the reserve fund be at any time reduced it may thereafter be again restored to the prescribed maximum and so from time to time as often as such reduction happens.

(3) Resort may be had to the reserve fund under the foregoing provisions of this section although the fund may not at the time have reached or may have been reduced below the prescribed maximum.

PART IV.

MISCELLANEOUS.

Inquiries by
Minister.

23 & 24 Geo. 5.
c. 51.

23. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents under this order and section 290 of the Local Government Act 1933 shall apply accordingly.

5 & 6 GEO. 6. *Ministry of Health* Ch. xiv.
Provisional Order Confirmation (Poole) Act, 1942.

24. The sections of the Public Health Act 1936 hereinafter mentioned shall have effect as if they were re-enacted in this order and in terms made applicable thereto:—

- Section 277 (Power of councils to require information as to ownership of premises.)
- Section 283 (Notices to be in writing; forms of notices &c.)
- Section 284 (Authentication of documents.)
- Section 285 (Service of notices &c.)
- Section 286 (Proof of resolutions &c.)
- Section 287 (Power to enter premises.)
- Section 288 (Penalty for obstructing execution of Act.)
- Section 296 (Summary proceedings for offences.)
- Section 299 (Inclusion of several sums in one complaint &c.)
- Section 304 (Judges and justices not to be disqualified by liability to rates.)
- Section 328 (Powers of Act to be cumulative.)

PART IV.
—cont.

Application of provisions of Public Health Act 1936.
26 Geo. 5 &
1 Edw. 8. c. 49.

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Ch. xiv.

Ministry of Health
Provisional Order Confirmation (Poole) Act, 1942.

5 & 6 GEO. 6.

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